

25LBCV02260 25LBCV02260

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-18

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Case Number: 25LBCV02260 Hearing Date: August 18, 2026 Dept: S27

Moving Party: Defendant, American Honda Motor Co., Inc.

Opposing Party: Plaintiff, Shirlee N. Ruffus

Notice: OK

On 5/18/26, the Court heard

Defendant's ex parte application for an order continuing trial and related dates because Plaintiff had not participated in a deposition or made her vehicle available for inspection. The

Court ordered Plaintiff to appear for deposition by 6/15/26. The Court also ordered Plaintiff to make her vehicle available for inspection by 6/15/26.

On 6/17/26, Defendant filed this

motion for terminating sanctions based on Plaintiff's failure to comply with the 5/18/26 order, setting the motion for hearing on 10/01/26. Because 10/01/26 is after the scheduled trial date, Defendant made an ex parte application to advance the hearing on the motion. The Court granted the application on 7/08/26, setting the motion for hearing on 8/18/26.

Plaintiff opposes the motion,

contending her vehicle was produced for inspection on 6/04/26 but conceding the second session of her deposition has not yet gone forward. She contends she is ready, willing, and able to sit for the second session of her deposition and has offered dates for the deposition, such that terminating sanctions are not appropriate.

The Court wishes to hear from the

parties, at the time of the hearing, concerning the status of Plaintiff's deposition. The case is set for trial on 9/08/26, such that time is of the essence.

If the parties submit on the tentative, the Court will presume the parties have resolved their issues and the motion will be denied.

Defendant is ordered to give notice.